

105	Mutoujackson vs. City of Fullerton Police Department 25-01516622	1. Motion for Leave to Amend 2. Case Management Conference Plaintiff's Motion for Leave to File a First Amended Complaint is denied for the same reasons as set forth in this Court's 6/30/2026 ruling in 2025-01479364, RJN Ex. 5. As 2025-01479364 and 2025-01516622 appear to be identical, this Court sets an OSC re: why the 2025-01516622 matter should not be dismissed or why the Court should not strike it sua sponte without leave to amend for October 13, 2026, at 09:30 AM. Defendant to give notice.
106	Reynolds vs. Nieves 26-01542580	1. Motion to Set Aside/Vacate Default 2. Case Management Conference Defendant Jose Cabrera moves to set aside default entered on the Complaint of plaintiffs John Reynolds and Karen Reynolds. When an application for relief from default is made no more than six months after entry, is in proper form, and is accompanied by an attorney's sworn affidavit that the entry of default was a result of his or her mistake, inadvertence, surprise, or neglect, the court shall vacate the resulting default. (Code Civ. Proc., § 473(b).) Counsel for defendant states that, although he was aware that Defendant had been served, he erroneously believed that co-Defendant Malkiel Nieves would be providing an attorney to represent Defendant in this action. This belief was based on a written settlement agreement between Cabrera and Nieves in which Nieves agreed to defend and indemnify Cabrera from various claims, including the claims asserted in this action. (Sellers Decl. ¶¶7-8.) However, counsel recently reviewed the Register of Actions for this matter and discovered that Nieves did not comply with